

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Team # 1	CCRB Case #: 200814552	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/08/2008 5:00 PM	Location of Incident: the 59th Street and Lexington Ave. subway station-6 line	Precinct: 19	18 Mo. SOL 4/8/2010	EO SOL 4/8/2010	
Date/Time CV Reported Wed, 10/08/2008 5:18 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/08/2008 5:18 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Raymond Low	28922	936985	TB DT04

Officer(s)	Allegation	Investigator Recommendation
A.POM Raymond Low	Force: PO Raymond Low used physical force against § 87(2)(b) [REDACTED]	[REDACTED]

Synopsis

On October 8, 2008, § 87(2)(b) filed the following complaint on behalf of § 87(2)(b). On October 8, 2008 at approximately 5:00PM, § 87(2)(b) was sitting on a bench with five friends on the 6 train platform inside the 59th Street and Lexington Avenue subway station in Manhattan. Several of her friends were play-fighting by pushing and shoving each other on the platform. PO Raymond Low of Transit Bureau District 4 (TB D4) ordered the group to leave on the next train. When the group did not comply with his order, he instructed them to leave the station. PO Low pushed § 87(2)(b) one of § 87(2)(b)'s friends, five times in the chest with both arms, causing § 87(2)(b) to stumble backwards (Allegation A). § 87(2)(b) then attempted to take her cell phone from § 87(2)(b) before leaving. PO Low arrested § 87(2)(b) by taking hold of her arms and folding them behind her back. § 87(2)(b) resisted by pulling her arms away and saying, "Get off me." PO Low and an unidentified officer regained control of her arms and placed her against a wall. PO Low took out handcuffs, but was not able to place them on her, because she continued to struggle with her arms. Both officers then forced § 87(2)(b) onto the ground, where she continued to struggle by attempting to stand up. Eventually, she relented and the officers successfully placed her in handcuffs. § 87(2)(b) was transported to the TB D4 stationhouse in Union Square and was later released into her mother's custody.

§ 87(2)(b) was not acquainted with § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Summary of Complaint

Civilian Statements

§ 87(2)(b)

On November 10, 2008, § 87(2)(b) was interviewed at the CCRB. § 87(2)(b) is a § 87(2)(b) white female who is 5 feet in height and weighs 102 pounds. § 87(2)(b) has green eyes and brown hair.

On October 8, 2008, at approximately 5:00 PM, § 87(2)(b) got off the subway at the 59th St. and Lexington Ave. subway station. As § 87(2)(b) walked upstairs towards street level, she heard yelling and screaming coming from the entrance. § 87(2)(b) walked to the turnstile gate at the entrance from the subway to Bloomingdales. She observed a group of approximately ten people gathered near the turnstiles on the inside of the station. § 87(2)(b) also observed § 87(2)(b) being held against the turnstile gates by PO1 (Male Hispanic, white shirt plainclothes, 5'8", average build). § 87(2)(b) was screaming "Get off me." The group gathered around consisted of mostly young girls who were the same approximate age as the girl being pushed against the gate. There was also an older woman who may have been a teacher or chaperone.

§ 87(2)(b) believed that she had witnessed a domestic dispute and went to speak to three police officers in uniform whom she had seen around the corner. The officers ran the short distance to the disturbance. When § 87(2)(b) returned with the police officers, she noticed that the man holding the § 87(2)(b) against the wall was wearing a badge on a chain around his neck and was a police officer in plain clothes. § 87(2)(b) then asked a young bystander what had occurred and was informed that an officer had slammed § 87(2)(b)'s head on the floor "for no reason." § 87(2)(b) was upset and was crying. § 87(2)(b) did not see the § 87(2)(b) resisting or fighting back. PO2 (black male, uniform 5'8") went to assist the plainclothes officer in restraining the girl, while PO3 (male, uniform 6'2") White and PO4 (male, uniform) managed the crowd. § 87(2)(b) was facing PO1, who had both hands on the young girl's shoulders and was holding her against the gate. She was holding up her hands and saying, "Don't touch me." She became more and more upset and began to cry. § 87(2)(b) protested to one of the officers that it was inappropriate for the police officers to handle the situation in such a way. She asked if it was possible for a female officer to be called to the scene, but was told that no female officers were available.

Approximately 3 minutes after the arrival of the three uniformed officers, PO5 (white male) in a white uniform arrived with PO6, another uniformed officer. PO5 appeared to be supervising the scene and was speaking on his radio. Approximately ten minutes after § 87(2)(b) first arrived at the subway station; § 87(2)(b) was lead upstairs to the street level. § 87(2)(b) also went upstairs via a different staircase. § 87(2)(b) did not see § 87(2)(b) or any police officers on street level nor did she observe any police vehicles.

§ 87(2)(b)

On December 3, 2008, § 87(2)(b) was interviewed at the CCRB. § 87(2)(b) is a § 87(2)(b) black female who is 5'7" in height. § 87(2)(b) has brown eyes and black hair.

On October 8, 2008, at approximately 5:00pm, § 87(2)(b) and her friends § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were sitting on a bench on the platform of the uptown 6 train at the 59th Street subway station in Manhattan. § 87(2)(b) and her friends had just come from a McDonald's restaurant and were socializing together while several trains arrived and departed. Some of her friends were pushing and roughhousing with each other. PO Raymond Low (male, Hispanic, 5'7") of Transit Bureau District 4 approached the group and told them to board the next train or leave the station. PO Low was dressed in plainclothes and did not identify himself as a police officer. § 87(2)(b) and her friends questioned PO Low as to why they had to leave. PO Low flashed his badge to them and told them that if they did not board the next train they would have to leave the station. § 87(2)(b) did not see the badge clearly and could not see the badge number. During this exchange, an uptown 6 train arrived at the platform. The group began to gather their book bags and other belongings in order to board the train. Because the train arrived just as PO Low was ordering them onto the train, § 87(2)(b) and her friends were not able to board it in time. When PO Low saw that they did not comply with his order, he told them to leave the station. § 87(2)(b) told PO Low that the 6 train is the only train that she can take home. PO Low replied, "You'll have to take a different train today."

§ 87(2)(b)'s cell phone was with her friend § 87(2)(b). PO Low approached § 87(2)(b) and said "You got something to say tough guy?" PO Low then pushed him in the chest with both arms five times. § 87(2)(b) attempted to block PO Low by pushing PO Low's arms downward. The pushing caused § 87(2)(b) to stumble backward. § 87(2)(b) said to PO Low, "Why you pushing me?" § 87(2)(b) then said to the group, "Oh, he's a cop, let's go." § 87(2)(b) took her cell phone from § 87(2)(b) because she was afraid that he would drop it.

§ 87(2)(b) and her friends began walking towards the stairway to the 5 train platform with PO Low following them. PO Low grabbed § 87(2)(b) by the arm from behind, spinning § 87(2)(b) around to face him. § 87(2)(b) pulled back her arm and said, "Get off me." PO Low said, "What?" in disbelief, and grabbed § 87(2)(b)'s arms, folded them behind her and pushed her against the wall. § 87(2)(b) pushed backward and attempted to pull her arms out from behind her. PO2 (male, white, 5'7"), in plainclothes arrived and assisted PO Low in pushing § 87(2)(b) against the wall. PO2 took out handcuffs but could not place them on § 87(2)(b) because she was still struggling. PO2 said to PO Low, "Take her down." The officers stuck their legs out in front of § 87(2)(b) and pushed her, tripping her and causing her face and knees to hit the ground. PO Low then held § 87(2)(b)'s face into the ground while PO2 placed a knee in § 87(2)(b)'s back. § 87(2)(b) did not feel any pain from the knee in her back. The officers handcuffed § 87(2)(b) but § 87(2)(b) continued to move, attempting to get up. The officers forced her on the floor again, at which point § 87(2)(b) stopped struggling. At some point, uniformed officers arrived and were occupied in controlling the crowd that had gathered, including § 87(2)(b)'s friends. § 87(2)(b) was on the ground for approximately two minutes. She was then picked up by PO Low and PO2, who led her by her arms towards the subway station turnstiles. § 87(2)(b) was protesting that she could walk by herself and that they were pushing her. PO Low and PO2 led her past the turnstile gate at the lower entrance of the train station, and stood with § 87(2)(b) to wait for a vehicle to transport her to the TB D4 stationhouse. There were approximately eight uniformed police officers conducting crowd control. Two officers in blue uniforms were older and seemed to be in charge. § 87(2)(b)'s friends were calling out to her, asking her for the phone number of her mother. § 87(2)(b) also observed some civilians who seemed to be taking badge numbers of the police officers. The uniformed officers were instructing the bystanders to go away and to mind their own business.

While they were waiting, PO3 (Male, light skinned, plainclothes, tall) arrived. § 87(2)(b) was pacing and crying because she was upset. PO3 pushed § 87(2)(b) against the gate and told her that he would place her on the ground. The vehicle arrived after approximately ten minutes and § 87(2)(b) was led up to street level. The driver of the vehicle was in uniform. PO Low sat in the back seat with § 87(2)(b) while another officer in uniform entered and sat in the front passenger seat.

§ 87(2)(b) was driven to the TB D4 stationhouse at Union Square, where she was placed in a room and handcuffed to the wall. § 87(2)(b) was released to her mother after receiving permission to call her. § 87(2)(b) did not seek any medical attention for the incident.

At the conclusion of § 87(2)(b)'s CCRB interview, she was shown 4 groups of photographs. § 87(2)(b) identified PO Raymond Low of TB D4 as the officer that pushed § 87(2)(b) and arrested her. She did not identify any other officers.

Results of Investigation

Attempt to Contact Victim

§ 87(2)(b) is a minor. Therefore it was necessary to obtain permission from his parents in order to ask for his participation in this investigation. On December 19, 2008, the undersigned called § 87(2)(b) requesting that he seek permission from his parents in order to participate in the investigation. On February 10, 2009, the undersigned investigator spoke to § 87(2)(b) by phone. § 87(2)(b) stated that his mother did not wish for him to provide a statement to the CCRB.

Officers not Interviewed

The § 87(2)(b) described a level of force used against her that was minimal and in accordance with police arrest procedure. The only FADO allegation made by § 87(2)(b) was that PO Low pushed § 87(2)(b) five times in the chest. § 87(2)(b), § 87(2)(g)

Police Department Documents

Command Log

The command log from Transit Bureau District 4 on October 8, 2008 indicates that PO Low arrested

§ 87(2)(b) at 5:15 PM at 59th Street and Lexington Avenue § 87(2)(a) FCT § 380.1

§ 87(2)(b) was released into her parent's custody at § 87(2)(b)

Roll Call

Roll Call from October 8, 2008, tour three indicates that PO Low was scheduled to attend court at 9:00AM.

Juvenile Report

§ 87(2)(a) FCT § 380.1

Conclusions and Recommendations

Identification of Victim

§ 87(2)(b) could not identify the female that she witnessed being placed under arrest inside the subway station. The undersigned obtained the command log from TB D4 from October 8, 2008, which indicated that § 87(2)(b) was arrested at the same location and approximate time of the incident, and matched the description provided by § 87(2)(b) § 87(2)(b), § 87(2)(g)

Officer Identification

At the conclusion of § 87(2)(b)'s CCRB interview, she was shown 4 groups of photographs.

§ 87(2)(b) identified PO Raymond Low of TB D4 as the officer that arrested her. § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A: PO Raymond Low used physical force against § 87(2)(b)

§ 87(2)(b), § 87(2)(g)
[REDACTED]
[REDACTED]

Investigator:	Simon Wang	Date:
Supervisor:		Date:
Reviewed by:		Date:
Reviewed by:		Date: